

STATE OF MINNESOTA
COUNTY OF HENNEPIN

DISTRICT COURT
FOURTH JUDICIAL DISTRICT
Case Type: Contract

Yibiao Lu and Jie Hu,

Plaintiffs,

v.

Fire Insurance Exchange, by and through
its attorney-in-fact, Fire Underwriters
Association (d/b/a Farmers Insurance),

Defendant.

Court File No.: 27-CV-26-11606

Judge: Jamie L. Anderson

**PLAINTIFFS' PROPOSED
DISCOVERY PLAN**

Pursuant to the Court's direction of September 1, 2026 that the parties may submit individual proposed discovery plans, Plaintiffs Yibiao Lu and Jie Hu, appearing pro se, submit the following. The parties conferred on August 28, 2026 as required by Minn. R. Civ. P. 26.06 but did not reach agreement. The numbering below follows the order of the subjects listed in Rule 26.06(c).

Scope of the parties' disagreement. Defendant's letter to the Court of August 28, 2026 describes the parties as having had “significantly different positions on proposed dates for the Scheduling Order.” The disagreement is not confined to dates. The parties do agree that no change is needed to the timing or form of initial disclosures (paragraph 1) and that no limitations beyond those in the Rules should be imposed (paragraph 5). Before and during the conference, Plaintiffs also proposed substantive terms governing the form of production for electronically stored information (paragraph 3), the procedure for claims of privilege (paragraph 4), and a protective order (paragraph 6). Defendant's Proposed Rule 26.06 Discovery Plan, filed September 1, 2026, does not adopt those terms: its corresponding paragraphs provide only that the parties will retain discoverable material and will follow Rule 26, and it contains no confidentiality provision. Because Defendant's plan states those paragraphs in the joint voice, Plaintiffs respectfully clarify that they have not agreed to the terms stated in paragraphs 3 and 4 of Defendant's plan, or to the deadlines in its paragraph 6. Plaintiffs set out their proposed terms below so that they may be addressed in the Court's Scheduling Order.

1. **Changes to the timing, form, or requirement for Rule 26.01 initial disclosures.** No changes are necessary. The parties agree that initial disclosures under Rule 26.01(a) shall be made on or before September 25, 2026.
2. **Subjects on which discovery may be needed; when discovery should be completed; whether discovery should be in phases.** Discovery will be needed on Plaintiffs' claims and Defendant's defenses. Discovery should not be conducted in phases or limited to particular issues, and fact discovery should precede expert discovery on the schedule set out in paragraph 7. The subjects include:
 - The cause, extent, and location of the July 13, 2024 hail damage to the windows and other exterior components of the Property, including components the appraisal panel did not evaluate;
 - The three inspections of the Property — by Hancock Claims Consultants (August 29, 2024), by Defendant's adjuster Nicholas Brau (September 6, 2024), and by Prieve Engineering (File #241008) — including their scope and methodology and the decision to limit the Prieve engagement to windows;
 - Defendant's handling of the claim, its denials of September 3 and November 4, 2024, and its stated requirement that evidence be provided by an engineer;
 - The 2020 claim and file, including the Xactimate estimate and photograph log, and Defendant's prior-payment position;
 - The September 12, 2025 appraisal award, its scope and itemization, and the files of the appraisers and the umpire;
 - Defendant's internal communications and recorded calls concerning the claim and its handling;
 - Defendant's claims-handling policies, training, and procedures in effect since July 13, 2024, including its practice for reviewing and adopting third-party inspection and engineering reports;
 - Defendant's retention and oversight of its inspection and engineering vendors;
 - Defendant's claim-file audit trail and record-retention practices, including the existence or loss of the records of the September 6, 2024 inspection; and
 - Defendant's response to Plaintiffs' November 19, 2024 complaint to the Minnesota Department of Commerce (Complaint ID 93547).

Basis for the proposed fact-discovery period. This is a document-intensive first-party insurance case: a multi-year claim file spanning two claims, three separate inspections by two outside firms, non-party discovery from those firms and from the members of the appraisal panel, and competing expert causation testimony. The claim file also contains unresolved factual gaps. Defendant has not identified the damage locations from the 2020 claim on which its prior-payment position depends. Defendant has given two irreconcilable accounts of the September 6, 2024 inspection conducted by its own adjuster, stating on October 10, 2025 that “[t]he file does not contain a report on the

requested date” and on October 29, 2025 that “[a]ll the information we can release has already been sent to you.” And Defendant has not consistently identified which windows the September 12, 2025 appraisal award covers — an award that designates them only by the undefined codes “F 1.7” and “B 1.2.” Resolving each of these requires written discovery, a documented custodial search, and, as to the missing inspection record, an organizational deposition under Rule 30.02(f) that cannot be scheduled until that search is complete.

3. **Issues about disclosure or discovery of electronically stored information (ESI).** The parties shall preserve all documents and ESI that may be relevant and discoverable. ESI shall be produced in its native format with metadata intact, or in another reasonably usable form as the parties agree; the searchability and metadata of ESI shall not be degraded, and responsive ESI shall not be printed to image or flattened. This applies in particular to photographic image files — including the photographs generated at each of the three inspections of the Property — which shall be produced with their original metadata. The parties will confer on custodians and data sources as the need arises.
4. **Issues about claims of privilege or protection as trial-preparation materials.** The parties will follow Minn. R. Civ. P. 26 with respect to claims of privilege and protection of trial-preparation materials, including service of a privilege log under Rule 26.02(f). Plaintiffs propose that the parties enter a non-waiver and claw-back agreement providing that inadvertent production does not waive privilege, and that the Court enter that agreement as an order so that its protections bind non-parties.
5. **Changes to the limitations on discovery.** Plaintiffs do not propose limitations on discovery beyond those set forth in the Minnesota Rules of Civil Procedure, and reserve the right to confer on adjustments the case may require, including additional deposition hours for organizational depositions under Rule 30.02(f).
6. **Confidentiality and protective order.** Plaintiffs anticipate that Defendant may seek to designate portions of its claim file or business records as confidential. Plaintiffs will agree to a reasonable single-tier protective order under which material may be designated CONFIDENTIAL, subject to the following:
 - (a) Plaintiffs will not agree to an “attorneys' eyes only” or other counsel-only tier. Plaintiffs appear pro se and have no counsel of record; such a tier would operate as a complete bar on their access to the evidence in their own case.
 - (b) Designations must be limited to genuine trade-secret, proprietary business, or private personal or financial information. Material may not be designated confidential merely because it was produced from a claim file.
 - (c) Material designated CONFIDENTIAL may be disclosed to: the parties; the Court and its personnel; court reporters and videographers; any person retained by a party as

an expert or consultant in this action; Jeffrey Hu, who assists Plaintiffs in preparing this litigation and whose access the parties discussed at the conference; deposition and trial witnesses to the extent reasonably necessary for their examination; and, as to Defendant, its counsel of record, counsel's staff, and its employees and representatives with a need to know. Each such person, other than the parties, the Court and its personnel, and counsel of record and counsel's staff, shall first sign a written undertaking agreeing to be bound by the order and submitting to the jurisdiction of this Court for its enforcement.

The remaining operational terms are matters for a stipulated order. As the party seeking to protect its own records, Defendant is expected to propose the form of order, and Plaintiffs will respond promptly. If the parties cannot agree, Plaintiffs request that the Court resolve any disputed terms.

7. **Order that the Court should issue under Rule 16.02.** Plaintiffs propose the following pretrial deadlines for the Court's Scheduling Order:

Event	Proposed Deadline
Rule 26.01(a) initial disclosures	September 25, 2026
Substantial completion of document production	February 26, 2027
Deadline to join parties / amend pleadings	March 31, 2027
Close of fact discovery	June 30, 2027
Non-dispositive motions heard by	August 13, 2027
Plaintiffs' expert disclosures and reports	September 24, 2027
Defendant's expert disclosures and reports	October 25, 2027
Deadline to file Minn. Stat. § 604.18 motion to amend	November 1, 2027
Rebuttal expert disclosures and reports	November 22, 2027
ADR completed (Rule 114)	December 10, 2027
Close of expert discovery	January 14, 2028
Dispositive motions heard by	March 3, 2028
Trial-ready date	May 15, 2028

Note on Plaintiffs' shortening of their proposed schedule. At the Rule 26.06 conference on August 28, 2026, Plaintiffs proposed a trial-ready date in June 2028. The schedule proposed above advances that date to May 15, 2028. Plaintiffs have shortened their own proposal by removing intervals that the work of this case does not require — principally by scheduling alternative dispute resolution after the exchange of expert reports rather than ahead of them, and by shortening each expert disclosure round to approximately one month. Plaintiffs have accordingly moved toward Defendant's

position, and respectfully submit that the schedule above is the shortest one consistent with completing the discovery this case requires.

Note on substantial completion of document production. Plaintiffs propose a date certain by which the parties' document productions are substantially complete, so that depositions and non-party discovery may be scheduled against a settled record rather than against a rolling production.

Note on the deadline to join parties and amend pleadings. Plaintiffs propose that this deadline fall approximately thirty days after substantial completion of document production, rather than before it. Defendant's first affirmative defense alleges a lack of jurisdiction over Defendant, and the documents bearing on the identity and capacity of the contracting entity — including the underwriting file and the attorney-in-fact documentation — are within Defendant's production. Plaintiffs should not be required to correct or add parties before the documents bearing on that question have been produced.

Note on the Minn. Stat. § 604.18 deadline. Minn. Stat. § 604.18, subd. 4 bars pleading a first-party bad-faith claim in the original complaint; the claim may be added only by a later motion to amend supported by affidavits making a prima facie showing. The statute sets no deadline for that motion, so the Scheduling Order controls. Because the required showing depends on the fact-discovery record, Plaintiffs propose a separate, later deadline for filing the § 604.18 motion rather than folding it into the general pleading-amendment deadline. If the claim is added, the award of § 604.18 taxable costs would be determined by the Court after the fact-finder's verdict under Minn. Gen. R. Prac. 119.

Note on the deadline for non-dispositive motions. Plaintiffs propose that this deadline fall approximately six weeks after the close of fact discovery and before expert disclosures. The deadline governs motions to compel, and a motion arising at the end of fact discovery must be capable of being heard, and any resulting production made, while the expert record is still open. A production compelled after expert reports have been served is of little use to the party that sought it. Under Minn. Gen. R. Prac. 115.04 the moving party must file 21 days before the hearing, which the proposed interval accommodates.

Note on sequencing. The proposed order reflects the dependencies among these events. Discovery disputes are resolved first; ADR follows the exchange of expert reports but precedes expert depositions and dispositive briefing, so that the parties may evaluate settlement with each side's causation opinion in hand and before the largest remaining costs of the case are incurred; and dispositive motions are heard after the close of expert discovery, so that neither party is required to brief summary judgment before the expert record is complete. Under Minn. Gen. R. Prac. 115.03 dispositive motions must be filed 28 days before the hearing, and the proposed interval between the close of expert discovery and the dispositive-motion hearing accommodates that requirement.

Note on the form of the trial-ready date. Plaintiffs propose a fixed trial-ready date rather than one expressed by reference to the determination of a dispositive motion. If a dispositive motion remains under advisement as the trial-ready date approaches, the parties will address the trial setting with the Court.

8. Additional information for the Court's scheduling order.

Jury or court trial: Jury trial. Both parties have demanded a jury.

Alternative dispute resolution (Rule 114): Plaintiffs propose non-binding mediation under Minn. Gen. R. Prac. 114.02(c)(1), to be completed by the deadline in paragraph 7. Plaintiffs request that the neutral have experience in insurance coverage or construction-defect disputes. The parties will confer on the selection of a neutral under Rule 114.04(a) within 30 days after entry of the Scheduling Order and will notify the court administrator of the selection as Rule 114.04(d) requires; if the parties are unable to agree, Plaintiffs request that the Court select a qualified neutral under Rule 114.04(b).

Expert witnesses: Plaintiffs anticipate calling one or more retained experts on hail causation and damage (forensic engineering and/or meteorology), together with valuation testimony.

Estimated trial length: Approximately 4–5 trial days.

Related cases: None. A prior administrative complaint was filed with the Minnesota Department of Commerce (Complaint ID 93547); it is not a pending court case.

Special needs: None known at this time.

Request. Plaintiffs respectfully request that the Court's Scheduling Order incorporate the deadlines proposed in paragraph 7 and the terms proposed in paragraphs 3, 4, and 6.

Dated: September 4, 2026



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